

complaint to get around the statute of limitations issues. As such, amendment would be futile. Leave to amend is **DENIED**.

Conclusion

Based on the above, the Court rules that New Pipes' demurrer is:

- 1) **OVERRULED** as to the trespass and nuisance causes of action.
- 2) **SUSTAINED** as to the negligence cause of action.
- 3) **OVERRULED** as to the negligent undertaking cause of action.

Leave to amend is **DENIED**.

8. 9:00 AM CASE NUMBER: C25-01712

CASE NAME: CWS CONSTRUCTION GROUP, INC. VS. AHS CUSTOM METALS, INC.,

***HEARING ON MOTION IN RE: FOR RELEASE OF FUNDS DEPOSITED WITH THE CLERK OF THE COURT
FILED BY: CWS CONSTRUCTION GROUP, INC.**

TENTATIVE RULING:

On April 7, 2026, Plaintiff and Cross-Defendant CWS Construction Group, Inc. ("CWS") filed a Motion for Release of Funds Deposited with the Clerk of the Court (the "Motion for Release of Funds"). The Motion for Release of Funds was set for hearing on August 17, 2026. The motion is unopposed

Background

As set forth in the Motion for Release of Funds, the sum of \$7,500.00 (the "Deposited Funds") was deposited with the Court by American Contractors Indemnity Company ("ACIC"). See Notice of Deposit filed May 28, 2026. The Deposited Funds represent payment of ACIC's license bond issued to defendant AHS Custom Metals, Inc. ("AHS").

Analysis

The motion is unopposed and no further filings have been made by any party or third party. No other claims have been filed or otherwise presented before the Court with respect to the Deposited Funds.

Disposition

The Court finds and rules as follows:

1. Motion for Release of Funds is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

9. 9:00 AM CASE NUMBER: C25-03333

CASE NAME: YESENIA RICO VS. JANE WANG

HEARING ON DEMURRER TO: CROSS-COMPLAINT

FILED BY:

TENTATIVE RULING:

The Demurrer to Cross-Complaint is **OFF CALENDAR**. Cross-Complainant filed a First Amended Cross-Complaint filed on July 30, 2026.

10. 9:00 AM CASE NUMBER: C26-00316
CASE NAME: GARY DARTEZ VS. DOES 1 THROUGH 50, INCLUSIVE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:

TENTATIVE RULING:

Defendants Walnut Creek Luxury Cars, LLC and Hudson Insurance Company (“Defendants”) filed a Demurrer on April 1, 2026 to the Complaint filed by plaintiff January 29, 2026 (the “Demurrer”). The Demurrer was set for hearing on August 17, 2026.

Background and Analysis

No opposition was filed. However, plaintiff filed a First Amended Complaint on July 28, 2026.

A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. Code Civ. Proc. § 472(a).

When the plaintiff files an amended complaint in response to a defendant’s demurrer before the hearing on the demurrer, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the demurrer was directed. *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 12.11.

Accordingly, the Court orders the Demurrer off-calendar as moot in light of the amended complaint.

Disposition

The Court finds and orders as follows:

1. The Demurrer is ordered OFF-CALENDAR as moot.
2. The Court shall issue the order after hearing.

11. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
HEARING IN RE: APPLICATION FOR ORDER TO SHOW CAUSE RE PRELIMINARY INJUNCTION
FILED BY: GUPTA, PRAVEEN

TENTATIVE RULING:

This matter is **CONTINUED**, *sua sponte* by the Court, to September 28, 2026, 9:00 am, in Department 34.